Customs and Excise (Toothpaste Manufacturer) (Suspension) Regulations, 2025

ARRANGEMENT OF SECTIONS

Sections

1. Title.
2. Interpretation.
3. Completion and use of prescribed forms.
4. Grant of suspension.
5. Registration of manufacturers.
6. Storage of suspended goods.
7. Clearance of goods.
8. Manufacturer to keep stock-book.
9. Disposal of suspended goods.
10. Eligibility of goods for suspension.
11. Cancellation of registration.
12. Transparency and accountability in the utilisation of suspension facility.

FIRST SCHEDULE: Forms.

SECOND SCHEDULE: Materials eligible for suspension.

THIRD SCHEDULE: Manufacturers approved to import raw materials under this suspension.

IT is hereby notified that the Minister of Finance, Economic Development and Investment Promotion has, in terms of section 235, as read with section 120, of the Customs and Excise Act [*Chapter 23:02*], made the following regulations:—

Title

1. (1) These regulations may be cited as the Customs and Excise (Toothpaste Manufacturer) (Suspension) Regulations, 2025.

(2) These regulations shall come into effect from 1st January, 2026.

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Interpretation

2. In these regulations—

"applicant" means any toothpaste manufacturer, or a toothpaste manufacturer listed in the Third Schedule, making an application for registration as a manufacturer of toothpaste in terms of these regulations;

"form" means the appropriate form referred to in the First Schedule;

"manufacturer" means any person who is registered as a manufacturer of toothpaste in terms of section 5;

"materials" means any goods referred to in the Second Schedule used in the manufacture of toothpaste.

Completion and use of prescribed forms

3. (1) All forms in terms of these regulations and copies thereof shall be completed indelibly and in a legible manner.

(2) An officer may refuse to accept any form if he or she considers that any part of it is illegible and that it has not been properly completed.

Grant of suspension

4. Subject to these regulations, a suspension of duty shall be granted on materials referred to in the Second Schedule, imported or taken out of bond by a manufacturer for use in the manufacture of toothpaste.

Registration of manufacturers

5. (1) Any person or persons listed in the Third Schedule who wishes to claim a suspension of duty in terms of these regulations shall apply to the proper officer in the appropriate Form for registration as a manufacturer.

(2) An application referred in subsection (1) shall be supported by such additional information or documents as the Commissioner

may require which shall be made before the importation or removal from bond of any goods intended for the manufacture of toothpaste.

(3) In order to be eligible for registration hereunder the applicant must—

(a) be registered with the Zimbabwe Revenue Authority; and

(b) have a valid tax clearance certificate; and

(c) have filed their tax returns for at least the preceding two years before that in which the application is made.

(4) On receipt of an application in terms of this section the proper officer shall, before referring the application for consideration by the Commissioner, inspect the applicant's premises and machinery and report his or her findings to the Commissioner.

(5) If the Commissioner approves the application, he or she shall call on the applicant to–

(a) erect on his or her premises the stores provided for in section 6; and

(b) enter into a bond on the appropriate Form, with sufficient surety in an amount determined by the Commissioner, for the securing of duty and compliance with the requirements of these regulations; and

(c) pay the fee referred to in this section.

(6) When the applicant has complied with the requirements of this section, the Commissioner shall register the applicant and the fee for registration as a manufacturer shall be the prescribed amount.

Provided that where the registration of an applicant is approved after the 30th of June in any year, the fee payable in terms of this section shall be half of the fee referred to in this subsection.

(7) The prescribed fee for renewal of registration of a manufacturer shall be payable annually on or before the 31st of January every year.

(8) The Commissioner may reject an application for registration if he or she is of the opinion that—

(a) adequate control of goods imported or taken out of bond under suspension of duty is not likely to be maintained; or

(b) any provision of these regulations will not be complied with.

Storage of suspended goods

6. (1) The manufacturer shall provide on his or her premises secure stores for the safe storage of goods on which duty has been suspended and shall, at his or her own expense, provide the necessary fastenings so that the stores may be secured with customs locks.

(2) No goods on which duty has been suspended may be stored elsewhere than in the stores provided for in subsection (1) of this section, and no such store shall, without the prior written permission of the Commissioner, be used for any other purposes.

Clearance of goods

7. (1) Goods to be entered under the suspension of duty provided for in these regulations shall be entered for consumption at the port of entry nearest to the premises of the manufacturer.

(2) A manufacturer shall, when effecting entry on importation or on removal from bond of goods intended for manufacture under suspension, submit with the relevant bill of entry, a declaration signed by him or her, to the effect that the goods are to be used solely in the manufacture of toothpaste.

Manufacturer to keep stock-book

8. (1) A manufacturer shall keep a stock-book, in a form approved by the Commissioner, showing full particulars of all receipts and disposals of goods entered for the manufacture of toothpaste in such a manner that the suspension goods can readily be accounted for the satisfaction of the Commissioner.

(2) If a manufacturer fails to keep a stock-book in the manner approved in terms of subsection (1), any suspended goods received by the manufacturer during the period when the stock-book was not so kept shall be deemed to have been used for a purpose other than that for which the suspension was granted unless the manufacturer satisfies the Commissioner that the suspension goods were used for the purpose for which the suspension was granted.

(3) The stock-book and premises of a manufacturer shall be open for inspection by an officer at any time.

Disposal of suspended goods

9. (1) Subject to subsections (2) and (3) of this section, a manufacturer shall not, except with the written authority of the Commissioner, and on payment of the duty suspended, dispose of any suspension goods otherwise than in accordance with these regulations.

(2) The Commissioner may authorise the disposal of suspension goods on payment of such duty, not exceeding the amount of duty suspended, as he or she thinks fit, if in the opinion of the Commissioner, the goods cannot be economically used for the purpose for which they were entered under suspension.

(3) A manufacturer shall, when required by the Commissioner to do so, carry out under the supervision of an officer, at such times as the Commissioner may consider necessary, any manufacturing operation in which goods entered under suspension are used.

(4) Duty on suspension goods which are accidentally destroyed before being used in the manufacture of toothpaste may be remitted if the Commissioner is satisfied that every reasonable effort was made and precaution taken to prevent their destruction.

Eligibility of goods for suspension

10. Only the goods listed in the Second Schedule shall be eligible for suspension if imported or taken out of bond under the tariff heading indicated opposite thereto.

Cancellation of registration

11. (1) The Commissioner may cancel or suspend the registration of a manufacturer if such manufacturer—

(a) ceases to manufacture toothpaste; or

(b) fails to comply with or contravenes any of the provisions of these regulations; or

(c) fails to pay the fee for the renewal of registration in accordance with subsection (7) of section 5; or

(d) so requests.

(2) If any registration is cancelled in terms of subsection (1) of this section, any duty suspension shall immediately become due and payable.

Transparency and accountability in the utilisation of suspension facility

12. (1) A manufacturer shall be required to present to the Minister, an annual report in a form approved by the Minister, showing full particulars of all the benefits achieved in the utilisation of the suspension facility granted in terms of these regulations. The report shall be in such a manner that the effect on the following aspects on the manufacturer's business can be readily ascertained or accounted for to the satisfaction of the Minister—

(a) the incremental employment levels achieved by the manufacturer;

(b) capacity utilisation levels attained from the use of the suspension;

(c) value of new investment received since the implementation of the suspension;

(d) growth in the manufacturer's output; and

(e) research and development initiatives carried out by the manufacturer.

(f) for manufacturers that export their products, CD1 forms discharged for the period prior to the application for the suspension;

(g) corporate social responsibilities executed by the manufacturer; and

(h) activities to protect the environment against degradation.

(2) If a manufacturer fails to produce the annual report in the manner approved in terms of subsection (1), the suspension shall be immediately withdrawn and any suspension goods received by the manufacturer during the period when the report was not so produced shall be deemed to have been used for a purpose other than that for which the suspension was granted. The manufacturer shall be required to pay the suspended revenue forthwith and the penalty for failure to keep records.

(3) The annual report by the manufacturer shall be submitted within thirty days from the end of the twelve months period calculated from:

(a) the 1st January 2026 in the first year; and

(b) thereafter from the 1st of January every year subsequently.

FIRST SCHEDULE (*Section 2*)

FORMS

Form Titles

Application for registration

Toothpaste manufacturer's Bond

In terms of section 5(2) of the Interpretation Act [*Chapter 1:01*], the stated forms are not published in these regulations. They may be inspected free of charge at the offices of the Zimbabwe Revenue Authority, Harare, or at any of the offices of the Zimbabwe Revenue Authority in any District.

SECOND SCHEDULE (*Section 10*)

GOODS ELIGIBLE FOR SUSPENSION

The goods listed below shall be imported or taken out of bond under suspension only by manufacturers registered in terms of section 5.

Heading No.	Commodity Code	Description of goods
28.11	2811.22.00	Abbrasive & Thickening Silica
28.26	2826.90.00	Sodium monoflusophasphate
28.34	2834.21.00	Potassium Nitrate
29.05	2905.32.00	Propylene glycol
	2905.44.00	Sorbitol 70%
	2905.45.00	Glycerine
29.06	2906.11.00	Menthol
	2906.21.00	Benzyl alcohol
29.16	2916.39.00	Sodium benzoate
	2916.39.00	Potassium Sorbate
29.17	2917.39.00	Triclosan
29.19	2919.90.00	Sodium Luryl Sulphate
29.25	2925.11.00	Sodium Saccharin
32.03	3203.00.00	Food Grade Colors
33.01	3301.24.00	Peppermint Oil
	3301.29.00	Clove oil
	3301.90.90	Tea tree leaf oil
33.02	3302.90.00	Allontin
	3302.90.00	Flavours, Peppermint, Spearmint, Cola, Apple, Strawberry, Banana
38.24	3824.88.00	Titanium dioxide
39.02	3902.20.00	PEG 400
39.12	3912.31.00	Carboxy methyl cellulose

Heading No.	Commodity Code	Description of goods
39.13	3913.90.90	Xanthan gum
39.23	3923.90.90	Empty plastic laminate tubes and packaging materials

THIRD SCHEDULE (*Sections 2 and 5*)

COMPANY QUALIFYING TO IMPORT GOODS UNDER THIS SUSPENSION

The company below has qualified to import goods and manufacture toothpaste under this suspension in terms of section 5.

Merken Investments (Private) Limited.